

রেজিস্টার্ড নং ডি এ-১ “জাতির পিতা বঙ্গবন্ধু শেখ মুজিবুর রহমানের
জন্মশতবার্ষিকী উদ্‌যাপন সফল হোক”



অতিরিক্ত সংখ্যা
কর্তৃপক্ষ কর্তৃক প্রকাশিত

বৃহস্পতিবার ফেব্রুয়ারি ১১, ২০২১

Government of the People's Republic of Bangladesh
Ministry of Housing and Public Works

Notification

Date : 05-11-1426/18-02-2020

S.R.O. No.55-Law/2020.—In exercise of the powers conferred under section 18A of the Building Construction Act, 1952 (Act No. II of 1953) the Government is pleased to make the following Code by repealing the Bangladesh National Building Code, 2006, namely :—

PART I

Chapter 1

Title, Purpose, Scope, Etc

1. **Title and commencement.**—(1) This Code may be called the Bangladesh National Building Code (BNBC) 2020.

(2) It shall come into force at once.

2. **Purpose.**—(1) The purpose of this Code is to establish minimum standards for design, construction, quality of materials, use and occupancy, location and maintenance of all buildings within Bangladesh in order to safeguard, within achievable limits, life, limb, health, property and public welfare.

(2) The installation and use of certain equipment, services and appurtenances related, connected or attached to such buildings are also regulated herein to achieve the same purpose.

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(3) The expressed intent of this Code is to ensure public safety, health and general welfare insofar as they are affected by the construction, alteration, repair, removal, demolition, use or occupancy of buildings, structures or premises, through structural strength, stability, means of egress, safety from fire and other hazards, sanitation, light and ventilation.

3. Scope.—(1) The provisions of this Code shall apply to the design, construction, use or occupancy, alteration, moving, demolition and repair of any building or structure and to any appurtenances installed therein or connected or attached thereto, except such matters as are otherwise provided for in other laws controlling and regulating buildings.

(2) If for any case different sections of this Code provide different specifications for materials, methods of design or construction, or other requirements, the most restrictive specification shall govern.

(3) In case of any conflict between a general requirement and a specific requirement, the specific requirement shall prevail.

(4) Unless otherwise explicitly stated in this Code, all references to part, chapter or section numbers or to provisions not specifically identified by number, shall be construed to refer to such part, chapter, section or provision of this Code.

(5) References made to a section without mentioning a part shall be construed to refer to that section of the part in which the reference is made.

(6) The provisions of any appendix in this Code shall not be mandatory unless they are referred to as such in any section of the Code or they are specifically adopted by any regulation.

(7) Inspection conducted or permission granted for any building or plan of building, under the provisions of this Code, shall not be construed as a warranty of the physical condition of such building or the adequacy of such plan.

(8) Neither the Authority nor any employee thereof shall be liable for damages or any defect or hazardous or illegal condition or inadequacy in such building or plan, nor for any failure of any component of such building which may occur subsequent to such inspection or granting of permission under the provisions of the Code.

4. Existing buildings.—(1) Buildings which are in existence on the date of commencement of this Code may have their use or occupancy continued without undergoing any alteration, abandonment or removal unless in the opinion of the Authority such continued use is hazardous to life and property and provided such use or occupancy was legal on the date of commencement of this Code.

(2) Buildings approved before commencement of this Code and compliant under the repealed Code may continue to be used or occupied unless any deviation is made thereafter or any deterioration has rendered the building unsafe in the opinion of the Authority.

(3) Additions, alterations, modifications or repair to an existing building may be made without requiring the existing building to comply with all the requirements of this Code, provided the additions, alterations, modifications or repairs conform to that required for a new building and such additions or alterations shall not be permitted when the existing building is not in full compliance with the provisions of this Code except when the addition or alteration will result in the existing building or structure being no more hazardous based on life safety, fire safety and sanitation than it was before the addition or alteration was undertaken.

(4) Any building together with the new additions shall not exceed the height, number of storeys and area specified in this Code for new buildings having the relevant occupancy and type of construction.

(5) Non-structural alterations or repairs to an existing building or structure which do not adversely affect any structural member, nor reduce the strength of any part of the building or structure to result in an unsafe condition shall be made with materials and components having the required fire resistance.

(6) Change in use or occupancy in an existing building may be made when such change complies with the requirements of this Code for a new building and provided such change does not render any part or the whole of the affected building or structure any more hazardous based on life safety, fire safety and sanitation than it was before such change was effected.

5. Historic or architecturally valuable buildings.—A building or structure which has been designated by official action as having special historical or archaeological interest, or a building or structure identified by a legally constituted authority as being architecturally valuable, may be undertaken for repairs, alterations and additions necessary for its preservation, restoration, rehabilitation or continued use, provided :

- (a) the proposed repair, alteration or addition to buildings of historical or archaeological significance is approved by the legally constituted authority, such as the Department of Archaeology;
- (b) the proposed repair, alteration or addition to buildings of architectural value does not impair the aesthetic quality and architectural character of such buildings; and
- (c) the restored building or structure will be no more hazardous, if any, based on life safety, fire safety and sanitation than the existing building.

PART I
Chapter 2
Definitions

6. Definitions.—In this Code, unless there is anything repugnant in the subject or context,—

ACCESSORY USE	means any use subordinate to the major use which is normally incidental to the major use.
ALTERATION	means any change, addition or modification in construction such as structural, dimensional, or any removal of any part of a building or any change to or closing of any required means of ingress or egress or a change to the fixtures or equipment or any change in land use or occupancy or use.
APPLICANT	means a person, a firm, a company, a corporation, or a government, semi-government or non-government agency who intends to undertake any work regulated by this Code and who has filed an application to the Building Official for this purpose in a form prescribed in the Code.
APPROVED	means approved by the Authority.
APPROVED PLAN	means the set of plans, designs and specifications of building submitted to the Authority as per provision of this Code and duly approved and sanctioned by the Authority.
ARCHITECT	means a person who has a Bachelor Degree in Architecture and is a member of the Institute of Architects, Bangladesh (IAB).
AUTHORITY	means the Bangladesh Building Regulatory Authority.
AUTHORIZED OFFICER	means BUILDING OFFICIAL.
BASEMENT	means a floor of a building more than 50 percent of which is situated at a depth of 1 m or more below crown of the main entry road.
BUILDING	means any permanent or semi-permanent structure which is constructed or erected for human habitation or for any other purpose and includes but not limited to the foundation, plinth, walls, floors, roofs, stairs, chimneys, fixed platform, verandah, balcony, cornice, projections, extensions, annexes etc. The term building will also include the sanitary, plumbing, electrical, HVAC, appurtenances and all other building service installations which are constructed or erected as an integral part of a building.

BUILDING LINE	means the line up to which the plinth of a building may lawfully extend. Also known as SETBACK LINE.
BUILDING OFFICIAL	means a person who is the jurisdictional administrator of this Code appointed by the Authority.
COMMITTEE	means a Building Construction Committee constituted for any area in the prescribed manner, if necessary.
CONSTRUCT	means ERECT.
CONVERSION	means the change in occupancy or premises to any occupancy or use requiring new occupancy permit.
COVERED AREA	means the ground area above the plinth level which is covered by a building structure. The covered area of a building shall exclude gardens, wells, cornice, sunshade, pergola, septic tank, soak well, unpaved uncovered water body, fountains, drainage structures, boundary wall, gates, porch, uncovered staircase, watchman's cabin, detached pump house, garbage chutes and other uncovered utility structures.
DEVELOPMENT	means carrying out construction of buildings, engineering, mining or other operations in, or over or under land or water. Includes re-development and layout and subdivision of any land. 'To develop' and other grammatical variations shall be interpreted accordingly.
DIPLOMA ARCHITECT	means a person who has a Diploma in Architecture from any recognized Polytechnic or Technical Institute and is a member of the Institution of Diploma Engineers, Bangladesh (IDEB).
DIPLOMA ENGINEER	means a person who has a Diploma in Engineering from any recognized Polytechnic or Technical Institute and is a member of the Institution of Diploma Engineers, Bangladesh (IDEB).
DRAIN	means a conduit or channel for conveying water, sewage, or other waste liquid for subsequent disposal.
DRAINAGE	means the disposal of any liquid with a system meant for this purpose.
ENGINEER	means a person who has a Bachelor Degree in Engineering and is a member of the Institution of Engineers, Bangladesh (IEB).

ERECT	means to erect a new building or re-erect an existing building or to convert a building from one occupancy to another. Also known as CONSTRUCT.
FORMATION LEVEL	means finished ground level of a plot. For hilly areas formation levels shall be the gradient of the plot surface.
GEOTECHNICAL ENGINEER	means engineer with Masters degree in geotechnical engineering having at least 2 (two) years of experience in geotechnical design/construction or graduate in civil engineering/engineering geology having 10 (ten) years of experience in geotechnical design/construction.
ENGINEERING GEOLOGIST	means a person having a postgraduate degree in engineering geology and having 2 years of experience in geotechnical exploration and interpretation.
GOVERNMENT	means the government of the People's Republic of Bangladesh.
GRADE	means the lowest point of elevation of the finished surface of the ground, pavement or footpath within the area between the building and the property line or a line 1.5 m from the building whichever is nearer the building.
HEIGHT OF BUILDING	means the vertical distance from a reference datum to the highest point of the building which includes all building appurtenances like overhead water tank, machine room, communication tower etc. The reference datum shall be the elevation of the nearest footpath or the elevation of the nearest road or street or public way at its centre line, whichever is higher.
HIGH RISE BUILDING	means any building which is more than 10-storey or 33 m high from reference datum. Building appurtenances like overhead water tank, machine room, communication tower etc. will not be considered in determining the height.
OCCUPANCY or USE GROUP	means the purpose for which a building or a part thereof is used or intended to be used.
OCCUPANCY, MAJOR	means the major or principal occupancy of a building or a part thereof which has attached to it subsidiary occupancy or occupancies contingent upon it.

OCCUPIER	means a person paying or liable to pay rent or any portion of rent of a building in respect of which the word is used, or compensation or premium on account of occupation of such building and also a rent-free tenant. Does not include a lodger and the words 'occupancy' and 'occupation' do not refer to the lodger. In such cases, the owner himself or herself is living in his or her own building, he or she shall be deemed to be the occupier thereof.
OWNER OF A BUILDING	means the person, organization or agency at whose expenses the building is constructed or who has the right to transfer the same and includes his or her heirs, assignees and legal representatives, and a mortgagee in possession.
PERMIT	means a written document or certificate issued by the Authority for carrying out a specific activity under the provisions of this Code.
PLANNER	means a person who has a Bachelor or a Postgraduate Degree in Planning and is a member of the Bangladesh Institute of Planners (BIP).
PLINTH AREA	means the elements from the building bases which are exposed above the formation level to form a covered floor area by joining the peripheral points of the elements which are intersected at finished floor plane at the height of plinth level.
PLINTH LEVEL	means height of a covered finished floor which is not more than 1 m above the formation level nor 1.85 m from the crown of adjacent road level.
PLOT	means SITE.
PLUMBING ENGINEER	means an Engineer (Civil/Mechanical) who has experience in the field of plumbing or sanitation.
PUBLIC WAY	means ROAD.
RELIABLE LITERATURE	means RELIABLE REFERENCE.
RELIABLE REFERENCE	means reference materials such as published article, codes, standards or other material judged to be reliable by the professional users and specialists in the subject concerned. This may also be referred to as RELIABLE LITERATURE.

ROAD	means a thoroughfare or public way which has been dedicated or deeded to the public for public use and also known as STREET.
ROAD LINE	means a line defining the side limits of a road.
ROOM HEIGHT	means the clear head room between the finished floor surface and the finished ceiling surface or the underside of the joists or beams, whichever is lower.
SANCTIONED PLAN	means the set of plans, design and specifications of a building submitted to the Authority as per provision of this Code and duly approved and sanctioned by the Authority.
SERVICE ROAD	means a road or lane provided at the rear or side of a plot for service purposes.
SETBACK LINE	means BUILDING LINE.
SITE	means a piece or parcel of land on which a building is intended to be or has already been constructed and also known as PLOT.
SPECIALIST	means a professional who by education, research, practice and experience specializes in a particular branch of a broader discipline and is generally judged to be so by the professional body in the relevant discipline.
STOREY	means the portion of a structure between tops of two successive finished floor surfaces and for the topmost storey, from surface of the finished floor of topmost floor to the top of the roof above.
STOREY, FIRST	means the lowest storey in a building which qualifies as a storey as defined herein; for a building with a basement, it is the storey just above the basements.
STREET	means ROAD.
STREET LEVEL	means the elevation of the centre line of any road or street which a plot fronts.
STREET LINE	means ROAD LINE.
SUPERVISOR, CONSTRUCTION	means an Architect or Engineer or Diploma Architect or Diploma Engineer having experience in supervision of construction works.
UNSAFE BUILDING	means a building which, in the opinion of the Building Official, is structurally unsafe, or insanitary, or lacks proper means of ingress or egress, or which constitutes a hazard to life or property.

PART I
Chapter 3
Abbreviations

7. Abbreviations of names and words.—(1) Names of institutions, organizations and professional societies referred to in this Code are listed below in an alphabetical order, namely :—

ACI	American Concrete Institute; Box 19150, Redford Station, Detroit, MI 48219, USA.
AISC	American Institute of Steel Construction, Inc.; 400 North Michigan Avenue, Chicago, IL 60611, USA.
AISE	Association of Iron and Steel Engineers; Suite 2350, Three Gateway Center, Pittsburgh, PA 15222, USA.
AISI	American Iron and Steel Institute; Suite 300, 1133 15th Street N.W., Washington, DC 20005, USA.
ANSI	American National Standards Institute; 1430 Broadway, New York, NY 10018, USA.
ASHRAE	American Society of Heating, Refrigerating and Air-conditioning Engineers, Inc.; 345 East 47 th Street, New York, NY 10017, USA.
ASME	American Society of Mechanical Engineers; United Engineering Centre, 345 East 47 th Street, New York, NY 10017, USA.
ASTM	American Society for Testing and Materials; 1916 Race Street, Philadelphia, PA 19103, USA.
AWS	American Welding Society; 550 N.W. LeJeune Rd., P.O. Box 351040, Miami, FL 33135, USA.
BIP	Bangladesh Institute of Planners, Planner's Tower (Level-7), 13/A, Bir Uttam C.R. Datta (Sonargaon) Road, Bangla Motor, Dhaka-1000, Bangladesh.
BOCA	Building Officials and Code Administrators International Inc.; 1313 East 60th Street, Chicago, IL 60637, USA.
BPDB	Bangladesh Power Development Board; WAPDA Building, Motijheel Commercial Area, Dhaka-1000, Bangladesh.
BSI	British Standards Institution; 2 Park Street, London W1A 2BS, UK.
BSTI	Bangladesh Standards and Testing Institution; 116A Tejgaon Industrial Area, Dhaka-1208, Bangladesh.
BWDB	Bangladesh Water Development Board; WAPDA Building, Motijheel Commercial Area, Dhaka-1000, Bangladesh.

CDA	Chittagong Development Authority; Station Road, Chittagong, Bangladesh.
CGSM	Canadian General Standards Board; Technical Information Unit, Ottawa, CANADA K1A 1G6.
DOA	Department of Architecture; Sthapatya Bhaban, Shahid Capt. Mansur Ali Sarani, Segunbagicha, Dhaka-1000, Bangladesh.
DPHE	Department of Public Health Engineering; DPHE Bhaban, 14, Shaheed Captain Mansur Ali Sarani, Kakrail, Dhaka-1000, Bangladesh.
EED	Education Engineering Department; Shikkha Bhaban, Dhaka-1000, Bangladesh.
HED	Health Engineering Department; Ministry of Health and Family Welfare, 105-106, Motijheel C/A, Dhaka-1000, Bangladesh.
FM	Factory Manual; Standards Laboratories Department, 1151 Boston Providence Turnpike, Norwood, MA 02062, USA.
FSCD	Fire Service and Civil Defence, Kazi Alauddin Road, Dhaka-1000, Bangladesh.
HBRI	Housing and Building Research Institute, 120/3, Darus-Salam, Mirpur, Dhaka, Bangladesh.
IAB	Institute of Architects Bangladesh, Plot-11, Block-E, Road-7, Sher-e-Bangla Nagar, Agargaon, Dhaka.
IEB	The Institution of Engineers, Bangladesh, Ramna, Dhaka-1000.
IDEB	Institution of Diploma Engineers, Bangladesh, IDEB Bhaban, 160/A, Kakrail VIP Road, Dhaka-1000.
ICBO	International Conference of Building Officials, 5360 South Workman Mill Road, Whittier, CA 90601, USA.
ISO	International Organization for Standardization, 1, Rue de Varembe, Case Postal 56, CH-1211, Genève 20, Switzerland.
ISSMFE	International Society of Soil Mechanics and Foundation Engineering, University Engineering Department, Trumpington St, Cambridge CB21PZ, UK.
KDA	Khulna Development Authority, Shib Bari Crossing, Khulna-9100, Bangladesh.
LGED	Local Government Engineering Department, LGED Bhaban, Sher-e-Bangla Nagar, Agargaon, Dhaka-1207. Bangladesh.

NFPA	National Fire Protection Association, Batterymarch Park, Quincy, MA 02269, USA.
NHA	National Housing Authority, Grihayan Bhaban, 82, Segunbagicha, Dhaka, Bangladesh.
PWD	Public Works Department, Purto Bhaban, Shahid Capt. Mansur Ali Sarani, Segunbagicha; Dhaka-1000, Bangladesh.
RAJUK	Rajdhani Unnayan Kartripakkha, Rajuk Avenue, Motijheel, Dhaka-1000, Bangladesh.
RCSC	Research Council on Structural Connections of the Engineering Foundation, American Institute of Steel Construction (AISC).
RDA	Rajshahi Development Authority, Rajshahi-6203, Bangladesh.
RMA	Rubber Manufacturing Association, 1400 K Street N.W., Washington, DC 20005, USA.
SBCCI	Southern Building Code Congress International, 3617 8th Ave, S. Birmingham, AL 35222, USA.
SMACNA	Sheet Metal and Air Conditioning Contractors' National Association, 8224 Old Courthouse Road, Tysons Corner, Vienna, VA 22180, USA.
SPRI	Single Ply Roofing Institute, 104 Wilmont Road, Suite 201, Deerfield, IL 60015-5195, USA.
UDD	Urban Development Directorate, Ministry of Housing and Public Works, 82, Segunbagicha, Dhaka-1000, Bangladesh.
UL	Underwriters Laboratories Inc., 207 East Ohio Street, Chicago, IL 60611, USA.

(2) The abbreviations of words used in this Code are listed below in an alphabetical order. Abbreviations not explicitly defined herein below shall be construed to have their usual meaning as the context implies.

BDS	Bangladesh Standards; published by the BSTI
BNBC	Bangladesh National Building Code; published by HBRI
BS	British Standard; published by the BSI
CBF	Concentric Braced Frame
CFC	Chlorofluorocarbon

CGI	Corrugated Galvanized Iron
CWPC	Cold Drawn Low Carbon Wire Prestressed Concrete
DCP	Dry Chemical Powder (fire extinguisher)
DDT	Dichlorodiphenyltrichloroethane
DPC	Damp-proof Course
EBF	Eccentric Braced Frame
FAR	Floor Area Ratio
FM	Fineness Modulus
FPA	Flood Prone Area
GI	Galvanized Iron
IBC	International Building Code
IMRF	Intermediate Moment Resisting Frame
IS	Indian Standard; published by the Bureau of Indian Standards
LFD	Load Factor Design
LPG	Liquefied Petroleum Gas
MCSP	Multipurpose Cyclone Shelter Program
OMRF	Ordinary Moment Resisting Frame
RC	Reinforced Concrete
RS	Rolled Steel
RSJ	Rolled Steel Joist
SMRF	Special Moment Resisting Frame
SPA	Surge Prone Area
SRSS	Square Root of the Sum of the Squares
UBC	Uniform Building Code; published by the ICBO
WSD	Working Stress Design
cps	Cycles per second

PART II**Chapter 1****Purpose and Applicability**

8. Purpose.—The purpose of this Part is to relate the provisions of the Code to different documents for administration and enforcement of the Code and all legal issues shall be referred to the Building Construction Act, 1952.

9. Applicability.—The requirements of this Code shall be complied within any construction, addition, alteration or repair, use and occupancy, location, maintenance, demolition and removal of a building or structure or any appurtenances connected or attached to it as set forth herein below:

- (a) **Construction:** For construction of a new building, the provisions of this Code shall apply to its design and construction;
- (b) **Removal:** For removal of any portion or the whole of a building, the provisions of this Code shall apply to all parts of the building whether removed or not;
- (c) **Demolition:** For dismantling or demolition of any part or the whole of a building, the provisions of this Code shall apply to any remaining portion and to the work involved in the dismantling or demolition process;
- (d) **Alteration:** For alteration of a building, the provisions of this Code shall apply to the whole building whether existing or new. If the portion of the building to which the alteration is made is completely self-contained with respect to the facilities and safety measures required by this Code, the provisions of this Code shall apply only to that portion and not to the whole building.
- (e) **Maintenance:** Maintenance work shall be undertaken for all new and existing buildings and all parts thereof to continue their compliance with the provisions of this Code. All devices, equipment and safeguards installed as per the requirements of this Code shall be maintained in conformity with the edition of the Code under which installed. The owner of the building or his designated agent shall at all times be responsible for the safe and sanitary maintenance of the building or structure, its means of egress facilities and the safety devices, equipment and services installed therein. The Authorized Officer or his delegated persons as described in relevant documents mentioned in Chapter 2 may cause re-inspection of a building to determine its continued compliance with this Section.

- (f) **Repair:** Application or notice to the Authority administering the Code is not necessary for ordinary repairs to buildings or structures, provided such repairs do not involve the cutting away of any wall or portion thereof, the removal or cutting of any structural or bearing element, the removal or alteration of any required means of egress, or the rearrangement of any parts of a structure affecting the access and exit facilities. All works involving addition to, alteration or change of use of any building or structure shall conform to the requirements set forth in Part 9 of this Code.
- (g) **Land Development:** For development of a land for construction of a building, the provisions of this Code shall apply to the entire development work. For land development purposes the following laws shall also be applicable:
- (i) Building Construction Act 1952;
 - (ii) Private Residential Land Development Rules 2004;
 - (iii) Natural Water Body Protection and Preservation of Open Space and Playground Act 2000.

PART II
Chapter 2
Establishment Of Authority, Etc

10. Establishment of Authority.—The Government may, with the approval of the Ministry of Public Administration, Finance Division and other relevant Ministries and Divisions, by a notification in the official Gazette, establish the Bangladesh Building Regulatory Authority (BBRA).

11. Head office of the Authority.—The head office of the Authority shall be in Dhaka.

12. Constitution of Authority.—(1) The Authority shall consist of the following 5 (five) members, namely:-

- (a) a civil engineer having professional experience of 30 years in design/ construction/teaching/research related to building;
- (b) an architect having professional experience of 30 years in design/ construction/ teaching/ research related to building;
- (c) a planner having professional experience of 30 years in planning/ teaching/research related to building;
- (d) a judge or legal practitioner having professional experience of 30 years in law including the qualification for appointment of a judge of the High Court Division;
- (e) a person having professional experience of 30 years in Bangladesh Civil Service.

(2) The Government shall appoint the members of the Authority and they shall hold office for a period of 3 (three) years.

(3) The Government shall nominate one of the members as the Chairman of the Authority.

13. Responsibilities of the Authority.—The Authority shall—

- (a) be the organization responsible for establishing regulatory framework for building design and construction with efficient and effective compliance mechanism;
- (b) develop building check and control procedure for ensuring high degree of regulatory compliance in planning and the Code requirements and reduce information asymmetry between the end user (building occupant, home owner) and seller (developers, builders);

- (c) streamline and improve transparency through dissemination of information related to built environment including detail land use plan, regulations on safety, water and environmental conservation, health, energy efficiency and urban planning requirements through print and digital media including its website;
- (d) develop an effective licensing system, jointly with the professional bodies by forming a National Council for Licensing of Building Professionals (NCLBP) for conducting examinations for the members of those respective professional bodies;
- (e) update the requirements of building permit and inspection procedure as per this Code;
- (f) require the owner of an existing or under construction high risk building, having major impacts on public safety for inhabitants within and near the building, to carry out review of design and construction by licensed professionals acceptable to the Authority;
- (g) introduce IT based automated procedure for permits and online information system to enable the applicants to track the progress of the permitting process;
- (h) establish an independent quasi-judicial dispute-resolution body that can make binding decisions in disputes between practitioners, developers, stakeholders and permitting authorities on matters related to interpretation of the Code or sufficiency of compliance, which cannot be appealed except to the High Court Division on matters of law;
- (i) recommend punitive and other measures against developers and professionals for violation of the Code and safety measures;
- (j) take measures for updating of the Code in light of research, improved building design and construction technique, availability of new products and technology;
- (k) advise the Government on policy and administration of building regulations including capacity development;
- (l) take up matters from time to time which the Authority deems necessary.

14. Office of the Building Officials, etc.—(1) The Authority shall designate specific geographical jurisdiction as the Office of the Building Official.

(2) The Office of the Building Official shall be established at various local or regional development area or local government levels.

(3) The Authority may, in order to proper functioning of it, subject to the Organogram approved by the Government and having required qualifications, appoint such numbers of Building Officials, technical assistants, inspectors and other employees as required.

(4) The administrative and operational chief of the Code enforcing office shall be designated as the Building Official who shall act on behalf of the Authority.

(5) The Building Official may designate an employee or employees who shall carry out the specified duty and exercise the specified power of the Building Official.

15. Building Construction Committee.—(1) The Building Official shall exercise through a Building Construction Committee comprising four members excluding Building Official.

(2) Building Construction Committee shall consist of one architect, one civil engineer, one town planner and representative from concerned body.

(3) Building Official shall work as ex-officio member-secretary of the Committee.

16. Qualifications of Building Official.—The person to be designated as the Building Official shall be at least an architect, a civil engineer or a town planner in addition to fulfilling any other requirement of the Authority.

17. Administrative jurisdiction of Building Official.—(1) The areas delineated below in Table 2.2.1 shall be under the jurisdiction of the Building Officials located in the offices/authorities mentioned in the right hand column:

Table 2.2.1: Jurisdiction of Building Officials of Designated Offices/Authorities

<u>Sl.</u>	<u>Area</u>	<u>Authority</u>
1	Areas falling under the master plan control of Rajdhani Unnayan Kartipokhkha (RAJUK)	RAJUK
2	Areas falling under the master plan control of Chittagong Development Authority (CDA)	CDA
3	Areas falling under the master plan control of Rajshahi Development Authority (RDA)	RDA
4	Areas falling under the master plan control of Khulna Development Authority (KDA)	KDA
5	Areas falling under the master plan control of any Development Authority to be established in future	Relevant development authority
6	Areas falling under the geographical jurisdiction of any City Corporation where no Development Authority exists	Relevant city corporation
7	Areas falling under the geographical jurisdiction of any Municipality where no Development Authority exists	Relevant municipality

<u>Sl.</u>	<u>Area</u>	<u>Authority</u>
8	Areas not falling under any of the above	Office of The Executive Engineer Public Works Department (PWD)
9	Special areas, if any	To be declared by the government as and when necessary

(2) There may be as many Building Officials as required depending upon the area of jurisdiction, but every Building Official shall be in charge of an independent and well demarcated area.

18. Merging the Jurisdictions under small local bodies.—Small local bodies like Pourashavas, Upazila, Union Parishad, located outside the larger city municipalities and having insufficient funds for individually carrying out the task of the Code enforcing agency may jointly appoint or designate, with the approval of the Authority, a Building Official who shall have a jurisdiction over the combined area of jurisdiction of the concerned local bodies.

19. Restrictions on the Building Official.—(1) The Building Official or any employee designated by him in this behalf shall not in any way, directly or indirectly, be engaged in planning, design, construction, repair, maintenance, modification or alteration of a building, certification of any work or materials, supply of materials, labor, equipment or appliances or any other work regulated by the provisions of this Code.

(2) The Building Official or such designated employee shall not be interested in business, either directly or indirectly, as planner, engineer, architect, builder or supplier or in any other private business transaction or activity within the jurisdiction of the Authority which conflicts with his official duties or with the interest of the Code enforcing agency.

(3) If any Building Official or designated employee violates the restrictions, he shall be liable to punishment as per service rule of the government.

20. Damage Suit.—(1) In the process of discharging the official duties as required and permitted by the Code, the Building Official or any employee shall not be personally liable for any damage that may be caused to any person or property.

(2) Any suit filed against the Building Official or any employee because of an act performed by him in the official discharge of his duties and under the provisions of the Code shall be defended by the legal representative of the Authority until the final decision of the proceedings.

(3) In no case shall the Building Official or any employee be liable for costs in any legal action, suit, or defense proceedings that may be filed in pursuance of the provisions of the Code.

21. Powers and duties of the Building Official.—(1) The Building Official shall be authorized to enforce all the provisions of this Code and for such purposes the Building Official shall have the power of a law enforcing officer.

(2) Applications shall be made in writing to the Building Official for any erection, construction, addition, alteration, modification, repair, improvement, removal, conversion, change of occupancy, and demolition of any building or structure regulated by this Code.

(3) The Building Official shall receive such applications, examine the premises, enforce compliance with this Code and issue permits for the intended work.

(4) All necessary notices and orders to correct illegal or unsafe conditions, to require the specified safeguards during construction, to require adequate access and exit facilities in existing buildings and to ensure compliance with all the requirements of safety, health and general welfare of the public as included in this Code shall be issued by the Building Official.

(5) The Building Official may enter a building or premises at reasonable times to inspect or to perform the duties imposed by this Code if:

- (a) it is necessary to make an inspection to enforce the provisions of this Code; or
- (b) he has reasonable cause to believe that a condition contrary to or in violation of this Code exists making the building or the premises unsafe, hazardous or dangerous.

(6) If the building or premises is occupied, the Building Official shall present credentials to the occupant and request entry.

(7) If the building or premises is unoccupied, the Building Official shall first make a reasonable effort to locate the owner or any other person having charge or control of the building or premises and request entry.

(8) If entry into the building or premises is refused or the owner of the unoccupied building or premises cannot be located, the Building Official shall secure entry as provided by the law.

(9) The Building Official or an employee designated by him in this behalf shall inspect all construction or work for which a permit is required or he may accept reports of inspection by a licensed engineer, architect or planner provided he satisfies the requirements of Table 2.3.4 and may disapprove the report showing specific reason for disapproval.

(10) The work or construction to be inspected shall remain accessible and exposed for inspection purposes until the approval is obtained.

(11) All reports of inspection shall be in writing and certified by the Building Official or the licensed engineer or the architect making the inspection.

(12) Approval of work or construction as a result of such inspection shall not be interpreted to be an approval of a violation of the provisions of this Code or of other law.

(13) The Building Official may require survey of the site and adjoining areas to verify that the structure is located in accordance with the approved plans.

(14) The Building Official or such designated employee shall carry proper identification when inspecting structure or premises in the performance of duties under the provision of this Code.

(15) The Building Official may issue an order for immediate discontinuation of a work and cancellation of a previous permit for such work at any stage if:

- (a) any work is being done contrary to the provision of this Code or other pertinent laws; or
- (b) it is determined by him that the construction is not proceeding according to the approved plan, dangerous or unsafe.

(16) In such cases the Building Official shall notify the owner in writing of such an order by showing the reason for the order, and the conditions under which the cited work will be permitted to resume.

(17) When there is insufficient evidence of compliance with the provisions of this Code, a Building Official shall have the authority to require test as evidence of compliance to be made at no expense to the office of the Building Officials and the test shall be performed by an agency approved by the Building Official.

(18) Any person who shall continue any work after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition, shall be subject to penalties as prescribed by law.

(19) The Building Official may order the current uses of a building discontinued and the building or portion thereof vacated by serving a notice on any person if the Building Official determines that the building or structure or equipment therein regulated by this Code is being used contrary to the provisions of this Code, such person shall discontinue the use within the time prescribed by the Building Official after receipt of such notice to make the structure, or portion thereof, comply with the requirements of this Code.

(20) The Building Official shall maintain records of all applications and drawings received, permits and orders issued, inspections made and reports prepared and submitted by other recognized agencies.

(21) Copies of all relevant papers and documents for enforcement of the Code shall be preserved by the Building Official. All such records shall be kept open to public inspection at all suitable times.

(22) The Building Official may engage, subject to the approval of the Authority, an expert or a panel of experts for opinion on unusual technical issues that may arise in administering the provisions of the Code.

22. Board of Appeal.—(1) The Authority may, with the approval of the Government, constitute a Board of Appeal to hear and decide appeals of orders, decisions or determinations made by the Building Officials related to the application and interpretation of this Code.

(2) The Board of Appeal shall consist of members appointed by the Authority who are noted for their educations and experience in the relevant field of building construction and whose term of office shall be as decided by the Authority.

(3) The Board of Appeal shall provide reasonable interpretation of the provisions of this Code and determine the suitability of alternative materials or methods of design or construction.

(4) The Board of Appeal shall, with the approval of the Government, adopt rules of procedure for conducting its business, and shall communicate all decisions and findings in writing to the appellant with a copy to the Building Official.

(5) The Board of Appeal shall have no discretion for interpretation of the administrative provisions contained in Part 2 of this Code nor shall be empowered to waive any requirement of this Code.

23. Requirement of certification of work.—Any planning, design, supervision of construction, repair, maintenance, modification and alteration of buildings, or any other work regulated by the Code shall be certified by a licensed engineer, architect or planner for its compliance with the provisions of the Code as per Tables 2.3.3 and 2.3.4.

24. Limits of professional conduct.—(1) Any licensed architect, engineer or planner may take assistance from fellow professionals who are not licensed but is member of professional bodies and who shall work under his direct control and he shall be allowed to plan, design and supervise construction, repair, maintenance, alteration and modification of buildings or structures regulated by this Code provided the licensed professional certify compliance of the work with the provisions of the Code.

(2) In case of any violation of the Code the licensed professionals who shall certify will be liable for action through professional bodies and such person may provide any such certificate as long as his or her services are recognized by the Building Official and such recognition is not withdrawn under the provisions of this Code.

25. Violation and penalties.—Any person, firm, corporation or government department or agency who as owner of the property erects, constructs, enlarges, alters, repairs, moves, improves, removes, converts, demolishes, equips, uses, occupies or maintains any building or structure or cause or permit the same to be done in violation of this Code shall be guilty of an offence and the Authority shall take legal action against such offenders as prescribed by law.

Explanation.—For the purpose of this provisions the term “owner” shall include any developer who by appointment, contract or lease is responsible for such activities.

26. Professional violation.—(1) The engineer, architect or planner responsible for design, supervision or certification of any construction or other work of a building or structure shall ensure compliance of such work with the provisions of this Code.

(2) Any violation of the Code or any other professional misconduct insofar as implementation of the provisions of this Code is concerned including making false statements or issuing false certificates or any incidence of proven professional incapability shall be recommended to the respective professional bodies for necessary disciplinary measure including withdrawal of recognition or registration.

27. Obligation of offender.—A person shall not be relieved from the duty of carrying out the requirements or obligations imposed on him or her by virtue of the provisions of this Code even if such person is convicted for an offence under the provisions of this Section.

28. Conviction no bar to further prosecution.—If a person is convicted under the provisions of this Code for failing to comply with any of its requirements or obligations such conviction shall not act as a bar for further prosecution for any subsequent failure on the part of such person to comply.

PART II
Chapter 3
Permits and Inspections

3.1 Permits

No building or structure regulated by this Code shall be erected, constructed, enlarged, altered, repaired, moved, improved, removed, converted or demolished without obtaining permit for each such work from the Building official.

Exceptions:

The following works are exempted from the requirement of a permit unless they do not otherwise violate the provisions of this Code, for the said work or any other adjacent property, regarding general building requirements, structural stability and fire safety requirements of this Code:

- (a) Opening or closing of a window or a door or a ventilator;
- (b) Providing internal doors;
- (c) Providing partitions;
- (d) Providing false ceiling;
- (e) Gardening;
- (f) Painting;
- (g) Plastering and patch work;
- (h) Re-flooring;
- (i) Construction of sunshades on one's own land;
- (j) Re-erection of portion of buildings damaged by earthquake or cyclone or other natural calamities, to the extent and specification as existed prior to such damage; and
- (k) Solid boundary walls less than 1.5 m and open boundary wall less than 2.75 m in height.

3.2 Types of Permit

Building permit shall comprise of the following 4 (four) stages:

- (a) Land use certificate.
- (b) Large and specialized project permit.
- (c) Building permit.
- (d) Occupancy certificate.

Permit of all or any of the above may be necessary for a particular area/city/town/municipality. Requirement in this regard shall be incorporated in the building construction byelaws/rules/regulations valid for that particular area/city/town/municipality.

3.2.1 Validity of Permits from the Date of Issuance

The validity of permits for different purposes from the date of issuance shall be as follows:

- | | |
|--|--|
| (a) Land use certificate | 24 months |
| (b) Large and specialized project permit | 24 months |
| (c) Building permit | 36 months (unless construction up-to plinth level is done) |
| (d) Occupation certificate | Perpetual (unless any change in use and physical properties) |

3.2.2 Permits Obtained Prior to Adoption of Code

If permit for a building or structure or a work regulated by this Code is obtained before adoption of this Code and the building or structure or work for which the permit is obtained is not completed within three years from the date of issuance of such permit, the said permit shall be deemed to have lapsed and fresh permit shall be necessary to proceed further with the work in accordance with the provisions of this Code.

3.3 Constitution of Building Permit Committees

3.3.1 As per the provisions laid out in the Building Construction Act the government may constitute various committees to examine and scrutinize applications mentioned in Clause 3.2 above and approve or refuse permits thereby.

3.3.2 Each committee will have specific Terms of Reference and Work Procedure.

3.4 Application For Permit

3.4.1 Any person who intends to undertake any work on a building or structure or land regulated by this Code shall file application in writing on the prescribed form furnished by the Building official for that purpose.

3.4.2 Application for permit for any work under the provisions of this Code shall be accompanied by necessary documents, drawings, certificates, clearances and other relevant information as required by the Building Official for that particular city/town/municipality/jurisdiction area etc.

3.4.3 The drawings shall have any of the sizes specified in the Table 2.3.1:

Table 2.3.1: Drawing Sizes for Permit Applications

Notation (ISO Standard)	Size (mm)
A 0	841 x 1189
A 1	594 x 841
A 2	420 x 594
A 3	297 x 420
A 4	210 x 297

3.4.4 Operation and Maintenance of Utility Services

The government may undertake works for operation, maintenance, development or execution of any of the following utility services without requiring obtaining permit from the Building Official.

- (a) Railways
- (b) National Highways
- (c) National Waterways
- (d) National Gas grid
- (e) National Power grid
- (f) Major Ports
- (g) Airways and Aerodromes
- (h) Telecommunications
- (i) Electronic Broadcasting Services
- (j) Any other services which the Government may, by notification, declare to be a service for the purpose of this Section if the Government is of the opinion that the operation, maintenance, development or execution of such service is essential to the community.

Buildings constructed in connection with these services shall conform to the specifications of this Code.

3.5 Disposal of Application

3.5.1 Subject to the submission of correct and complete application for the permits included in Sec 3.2 above, should be disposed by the Building Official within the time limit as shown in Table 2.3.2:

Table 2.3.2: Time Limit for Disposal of Application for Permits

Type of Permit	Maximum time allowed for disposal (approval or refusal by the Building official)
Land use certificate	15 days
Large and Specialized Project permit	45 days
Building permit	45 days
Occupancy certificate	15 days

3.5.2 The Building Official shall notify the applicant according to above table as the case may be either approval or refusal of the permit for any work. If the Building Official does not notify the applicant of such approval or refusal within this specified period, the application shall be deemed to have been approved provided the fact is brought to the notice of the Building Official. Such approval shall not be interpreted to authorize any person to do anything in contravention of or against the terms of lease or titles of the land or against any other regulations, bylaws or ordinance operating on the site of the work or any of the provisions of this Code.

3.5.3 Refusal of permit shall be accompanied with reason and the Building Official shall quote the relevant sections of this Code which the application/drawings/submissions contravene. The applicant may correct or remove such reasons and reapply for permit with any fee if applicable. The Building Official shall scrutinize the re-submitted application and if there be no further objection it shall be approved and permit issued.

3.6 Preparation And Signing of Drawings

3.6.1 All drawings submitted for approval shall be prepared and signed by registered professionals as specified in Table 2.3.4, which shall be considered as equivalent to certifying that the drawing on which the signature appears conforms to all the requirements of this Code. Registered Professionals shall put his or her signature with date on the title box of the drawing along with his name, address, professional society membership number, registration number and any other information required by the concerned Building Official.

3.6.2 The drawings shall also contain the signature, name and address of the owner.

3.6.3 Subject to the classification and use of buildings, all drawings for approval and execution shall be prepared and signed by the registered professionals as per building category specified in Tables 2.3.3 and 2.3.4 corresponding to relevant work.

Table 2.3.3: Building Classification Based on Height, Floor Area and Occupancy Type

Building Category	Height of Building	Floor Area	Type of Occupancy
I	Up to 2 Stories or 8 m height (without basement) applicable only for areas beyond the jurisdiction of Development Authority, City Corporation and Pourashava	Up to 250 m ²	A (A1-A2)
II	Up to 5 Stories (with or without basement)	Up to 1000 m ²	A (A1-A5)
III	Up to 10 stories or 33 m height for engineering design and supervision and any height for land survey, sub-soil investigation and architectural design	Up to 7500 m ²	A, B, C, E1, E2, F1, F2 and H1
IV	Any height	Any Size	All Occupancy Type

Table 2.3.4: Eligible Registered/Licensed Professionals for Signing of Design, Drawings, Reports and Documents

Types of Work	Registered Professional	Minimum Experience Requirement in Years for Building Category			
		I	II	III	IV
Land Survey	Civil Engineer	NA	NR	NR	NR
	Planner		NR	NR	NR
	Diploma Engineer (Civil)		3	3	3
	Certified Surveyor		3	3	3
Soil Investigation Report	Geotechnical Engineer having experience in soil investigation and soil test report analysis	NA	NR	NR	NR
	Civil Engineer having experience in soil investigation and soil test report analysis	NA	2	2	5

Types of Work	Registered Professional	Minimum Experience Requirement in Years for Building Category			
		I	II	III	IV
Architectural Design	Architect	NA	NR	2	8
	Civil Engineer	NA	NR	NE	NE
	Diploma Architect	NA	5	NE	NE
Structural Design	Civil Engineer with experience in structural design or PEng.	NA	2	4	8 (having 5 years in Structural design)
	Civil Engineer with M.S in Structural Engineering	NA	1	3	8 (having 4 years in Structural design)
Plumbing Design	Plumbing Engineer	NA	NR	4	8
	Architect	NA	NR	NE	
	Diploma Engineer (Civil)	NA	3	NE	NE
Mechanical (HVAC/Vertical Transportation) Design	Mechanical Engineer	NA	2	4	8
Electrical Design	Electrical Engineer	NA	2	4	8
	Diploma Engineer (Electrical)	NA	3	NE	NE
Construction Supervision	Architect/Engineer in their respective field or PEng.	NA	2	4	8
	Diploma Architect/Diploma Engineer in their respective field	NA	2	4	20*
Building Demolition	Civil Engineer	NA	NR	2	8
	Diploma Engineer (Civil)	NA	2	NE	NE
Completion Report	Architect and Engineer with experience in their respective field	NA	2	4	8

Note: NA: Not Applicable, NE: Not Eligible, NR: Not Required.

*Shall be countersigned by registered/licensed Architect/Engineer eligible for Building Category IV.

3.7 Fees

All applications shall be accompanied by fees as specified by the authority from time to time without which the application shall be deemed to be incomplete.

3.8 Responsibilities and Duties of The Owner

3.8.1 General

The owner of a building or structure regulated by the provisions of this Code shall be responsible for carrying out the work in conformity with the provisions of this Code. Granting of permission for any work or approval of plans or inspection by the Building Official or any of the deputies shall not relieve the owner from such responsibility.

3.8.2 Employment of Technical Personnel

Design, execution and supervision work of any building shall be carried out by authorized Registered Professionals as outlined in Table 2.3.4. Owner shall take the services of as many professionals as required according to type and size of the work.

3.8.3 Right of Entry

The owner shall allow the Building Officials to enter the site for the purpose of enforcing the Code as required by the provision of Sec 2.9.6 and for the purpose of inspection as provided in Section 3.10 below.

3.8.4 Permits from Other Agencies

The owner shall obtain permit as may be applicable from other concerned agencies relating to building, zoning, grades, sewers, water mains, plumbing, fire safety, signs, blasting, street occupancy, gas, electricity, highways and all other permits required in connection with the proposed work.

3.8.5 Information on Progressive Work

The owner shall inform the Building Official about attainment of construction work of different stages as required by the Building Official in prescribed form.

3.8.6 Safety Measures

The owner shall take proper safety measures in and around the construction site.

3.8.7 Notice of Completion

The owner shall notify the Building Official the completion of the work for which permit was granted in prescribed form. The work shall not be accepted as complete, without a certification from the Building Official.

3.8.8 Documents at Site

The owner shall preserve at the site a copy of all permits issued and all drawings approved by the Building Official. Results of tests carried out for determination of conformity of the work with the provisions of this Code shall also be preserved and made available for inspection during execution of the work.

3.8.9 Live Load Posted

Where the live loads for which each floor or portion thereof of a commercial or industrial building is or has been designed to exceed 2.4 kN/m², such design live loads shall be conspicuously posted by the owner in that part of each storey in which they apply, using durable signs. It shall be unlawful to remove or deface such notices.

3.9 Responsibilities and Duties of Technical Personnel

3.9.1 To qualify as Architect, Engineer, Construction Supervisor (Architect or Engineer or Diploma Architect or Diploma Engineer) of any building works one shall have membership of the respective professional body in the country. In addition they shall have to qualify as registered professional through an examination (written/oral) to be conducted by their respective professional body as per requirement of this Code.

3.9.2 Only technical professionals qualified under Sec 3.9.1 shall design, execute and supervise any building which is subjected to approval granted under this Code.

3.9.3 Any lapses on the part of the technical personnel in delivering the requirements of the Code shall call for punitive actions against him/her in the proper forum.

3.10 Inspection

All works relating to a building or structure regulated by the provisions of this Code for which permits are required shall be subject to inspection by the Building Official. Modalities and frequency of such inspections shall conform to the requirements put forward by the approving authority.

3.11 Unsafe Buildings

3.11.1 General

All buildings considered to constitute danger to public safety or property shall be declared unsafe and shall be repaired or demolished as directed by the Building Official.

3.11.2 Examination

The Building Official shall examine or cause examination of every building reported to pose threat to safety or be damaged by wear and tear or accident and shall make a written record of such examination.

3.11.3 Notification

If a building is found to be unsafe, the Building Official shall notify the owner of the building and specify the defects thereof. The notice shall require the owner within a stated time either to complete the required repair or improvement or demolish and remove the building or portion thereof.

3.11.4 Disregard of Notice

In case the owner fails, neglects or refuses to carry out the repair or improvement of an unsafe building or portion thereof as specified in the notice, the Building Official shall cause the danger to be removed either by demolition or repair of the building or portion thereof or otherwise, the cost of which shall be borne by the owner.

3.11.5 Cases of Emergency

If the Building Official considers that an unsafe building or structure constitute imminent danger to human life or health or public property, the Building Official shall at once or with a notice as may be possible promptly cause such building or structure or portion thereof to be rendered safe or removed. In such cases the decision of the Building Official shall be final and binding and he or any of his assigned deputies may at once enter such structure or land on which it stands or the abutting land or structure, with such assistance from and at such cost to the owner as may be deemed necessary. The Building Official may also get the adjacent structures vacated and protect the public by an appropriate fence or such other means as may be necessary.

3.12 Demolition of Buildings

If a building or structure is to be demolished, the owner shall notify all agencies providing utility services to the building. Such agencies shall remove all their appurtenances and equipment and dismantle all service connections to ensure a safe condition. The Building Official shall not grant any permit for demolition of a building until a release is obtained from the utility services stating that all service connections have been removed in the proper manner. The demolition work shall be done under the supervision of demolition expert as per provisions of Table 2.3.4.

3.13 Validity of This Code**3.13.1 Partial Invalidity**

In case any provision of this Code is held to be illegal or void, this shall have no effect on the validity of any other provision of the Code nor on the same provision in different cases nor on the Code as a whole, and they shall remain effective.

3.13.2 Invalidity of Existing Buildings

If any provision of this Code is held to be illegal or void by the Authority as applied to an existing building or structure, validity of that provision or any other provision of the Code in its application to buildings hereafter erected shall not be affected.

3.14 Architectural and Environmental Control

3.14.1 Besides enforcing the provisions of this Code for normal buildings and structures, the Building Official shall, for special structures such as those listed in Sec 3.14.2 below, also examine the aesthetics and environmental issues vis-a-vis the existing structures and the characteristics of the area, and exercise architectural and environmental control in accordance with the provisions of this Section.

3.14.2 Special structures for which architectural and environmental control shall be exerted by the Building Official shall include:

- (a) major public building complexes
- (b) buildings in the vicinity of monuments and major sculptures
- (c) buildings and structures near existing structures identified to be architecturally valuable.
- (d) buildings and structures near historic buildings or in a area of historical or archaeological significance.
- (e) buildings near any structures that represents the special characteristics of an area
- (f) any proposed building or structure that represents the special characteristics or forms part of a larger master plan of an area, and
- (g) any development that may have an effect on the environment or characteristics of an area.

3.14.3 The Authority shall, for the purpose of exercising the architectural and environmental control and for identifying existing structures having architectural value, appoint a standing committee comprising noted experts from the fields of Architecture, Archeology, Planning, History, Art, Literature, Engineering or any other discipline which may be deemed relevant. The committee shall examine the aesthetic quality of the proposed building, structure or development and the effect it may have on the characteristics and environment of the area in order to ensure aesthetic continuance of the new structure with the existing ones and aesthetic blending of the new structure with the surroundings. The committee may require additional drawings and information for a detailed study of the proposed work. The committee for the purpose of arriving at their decision, may at their discretion depending on the magnitude of the project and impact it may have on public life, hear the architect of the proposed work who may wish to explain the various features of the project, note comments of other experts in the relevant disciplines, or in exceptional circumstances, institute a public hearing to assess public reaction to the project.

3.14.4 The committee may approve the proposed work, recommend changes in the scheme, or disapprove the scheme, for reasons of aesthetics and environmental control.

3.14.5 The Building Official shall not issue permit for undertaking the proposed work until obtaining a report from the standing committee stating that the intended work is acceptable in respect of its effect on the environment, landscape, architectural characteristics, historical feature or any other aesthetical quality of the locality, area or landscape concerned.

3.15 Making Implementation Procedures

Detailed byelaws and implementation procedure to enforce the provisions of this Code shall be prepared and published by the relevant authorities.

3.16 List of Related Appendices

Appendix A	Form for Application of Land Use/Development/Building Permit
Appendix B	Form for Certificate of Supervision
Appendix C	Form for Sanction or Refusal of Land Use/Development/Building Permit
Appendix D	Form for Appeal against Refusal of any Permit
Appendix E	Form for Completion Certificate
Appendix F	Form for Occupancy Certificate

**PART II
Appendix A**

(Position and Address of the Building Official)
Form for Land Use/Development/Building Permit
First Application to Develop, Erect, Demolish or to Make
Alteration in any Part of the Building

Type of intended work: Develop ☐ Erect ☐ Demolish ☐ Alter ☐

(Check one)

Name of the owner: _____

Contact address: _____

Post code: _____

Telephone no: _____

Name, address and qualification of the engineer, architect or planner involved in the proposed work:

For planning: _____

For architectural design: _____

For structural design: _____

For civil works design: _____

For other services design: _____

Address of the site

Plot number: _____ Holding number: _____

Dag/Khatian number: _____ Mouza/Block/Sector: _____

Street name: _____ Municipal ward number: _____

Documents enclosed along with this form:

	Name of document	Number of sheets	Number of copies
1.	Key plan	_____	_____
2.	Site plan	_____	_____
3.	Subdivision/layout plan	_____	_____
4.	Building plan	_____	_____
5.	Services plan	_____	_____
6.	Specifications	_____	_____
7.	Ownership title	_____	_____

Date

Signature of the owner

For use of the Building Official. Do not write anything below this line.

Reference number: _____

Date: _____

(To be referred to in all subsequent correspondences)

Received by: _____

PART II
Appendix B**Form for Certificate of Supervision**

Reference number: _____

Address of the site:

Plot number: _____ Holding number: _____

Street name: _____

Municipal ward number: _____

Type of intended work (Check one) :

Develop ☐Erect ☐Demolish ☐Alter ☐

Name of the owner: _____

Contact address: _____

Post code: _____

Telephone no: _____

I hereby certify that the building for which the location, the type of work, and the name and address of owner appear above will be supervised by me as per the provisions of the Bangladesh National Building Code.

Signature of the engineer, architect, planner or supervisor_____
Name of the engineer, architect, planner or supervisor_____
Address_____
Qualification_____
Date

PART II
Appendix C**(Position and Address of the Building Official)**
Form for Sanction or Refusal of Land Use/Development/Building Permit

Reference number: _____

In response to your application whose reference number appears above, I hereby inform that the documents submitted along with your application have been (check as appropriate)

☐

Approved for implementation by the Authority

☐

Refused by the Authority for violation of the following provisions of the Bangladesh National Building Code:

(List of the sections violated)

Signature of the Officer_____
Permit number_____
Name of the Officer_____
Official stamp_____
Designation_____
Date

PART II
Appendix D

Form for Appeal against Refusal of any Permit

Reference number: _____

The application whose reference number appears above has been refused by the Authority. I hereby appeal against the refusal for the following reasons.

(List of the justifications for the appeal)

Date

Signature of the owner

For use of the Building Official. Do not write anything below this line.

Received by: _____

Date: _____

PART II
Appendix E

Form for Completion Certificate

Reference number: _____

Permit number: _____

Address of the site: _____

Plot number: _____ Holding number: _____

Dag/Khatian number: _____ Mouza/Block/Sector: _____

Street name: _____ Municipal ward number: _____

Documents enclosed along with this form: _____

Type of work (Check one)

Develop ☐ Erect ☐ Demolish ☐ Alter ☐

Name of the owner: _____

Contact address: _____

Post code: _____

Telephone No: _____

I hereby certify that the work having the above mentioned detailed particulars has been supervised by me and completed in accordance with the plan and design approved by the permit number cited and the provisions of the Bangladesh National Building Code.

Signature of the engineer, architect, planner or supervisor

Name of the engineer, architect, planner or supervisor

Address

Qualification

Signature of the owner

Date

Date

This Part to be completed by the Building Official.

The work identified by the reference number and permit number at the top of the form is hereby accepted as complete in accordance with the approved plan and design.

Signature of the Officer

Name of the Officer

Official stamp

Designation

Date

PART II
Appendix F**(Position and Address of the Building Official)**
Form for Occupancy Certificate

Reference number: _____

Permit number: _____

Address of the site: _____

Plot number: _____

Holding number: _____

Dag/Khatian number: _____

Mouza/Block/Sector: _____

Street name: _____

Municipal ward number: _____

Documents enclosed along with this form:

Type of work (Check one)

Develop ☐Erect ☐Demolish ☐Alter ☐

Name of the owner: _____

Contact address: _____

Post code: _____

Telephone no: _____

I hereby certify that the work having the above mentioned detailed particulars has been completed in accordance with the plan and design approved by the permit number cited and the provisions of the Bangladesh National Building Code. The owner has submitted all the required documents for issuance of occupancy certificate. Thus, I, hereby, certify that the holding may be occupied as _____ (mention the occupancy type).

Signature of the Officer_____
Name of the Officer_____
Designation_____
Official stamp_____
Date

PART III**Chapter 1****General Building Requirements****1.1 Scope**

This Part of the Code puts forward classification of buildings based on occupancy or nature of use and deals with the general and specific requirements of each of the occupancy groups. Fire resistance requirements are expressed in terms of type of construction which shall conform to the specified fire-resistive properties.

1.2 Terminology

This Section provides an alphabetical list of the terms used in and applicable to this Part of this Code. In case of any conflict or contradiction between a definition given in this Section and that in any other Part of this Code, the meaning provided in this Part shall govern for interpretation of the provisions of this Part.

Accessibility	The provision in a plot or a building or a facility or any part thereof that can be approached, entered and used without assistance by persons with temporary or permanent physical limitations.
Accessibility Route	A continuous unobstructed path that starts from the entry and shall continue through all accessible elements and spaces within a plot and buildings or facilities thereof up to the exit termination.
Accessible	The term accessible or adaptable shall be used as a prefix for spaces or features which are designed for persons having physical limitation; such as accessible toilet, accessible kitchen, accessible lift, and so on.
Adaptable	See ACCESSIBLE
Area Planning Authority	A government or semi-government agency or a local body which has been legally designated to formulate land use or plans of the area under their jurisdiction.
Assembly	In a building or a portion thereof used for gathering of 50 or more persons for deliberation, worship, reading, entertainment, eating, drinking, awaiting transportation, or similar uses not limited to these; or used as a special amusement building, regardless of occupant load.
Atrium	A large volume space within a multistoried building having series of floor openings or corridors or similar elements in and around and floors are connected from there and series of openings or a glazing on roof or a portion thereof constructed with glazing and having a minimum two stories high. The word Atria or Atriums are the plural form of Atrium.

Balcony	A covered and hanging platform at a height of minimum 2.286 m from the plinth level of a building and having access from any floor level and which is laterally open to outer air by three sides up to 2.06 m in height and edges are protected with guards. Within an interior space, a balcony is a portion which are positioned sidewise as similar as Mezzanine.
Baluster	Single vertical member of a guardrail or a Handrail or a member of both which shall be complied with the provisions of this Code.
Balustrade	Plural form of BALUSTER.
Barrier	A wall or a partition or a floor slab or a ceiling within a building which confines and protects flow of smoke and fire from the exposed side of the barrier. The fire rating of barriers shall be complied with the provisions of this Code.
Basement	A floor of a building or a portion thereof which is situated as a whole or partially at depth of minimum 50 percent of ceiling height below formation level shall be called as a basement.
Building Line	The peripheral lines of a building mass or volume up to which the plinth area or any floor area may be lawfully extended within a plot.
Carriageway	A path including over bridge or bridge which is open to the outer air and may or may not be covered or roofed or an underpass, design and designated for vehicles only.
Ceiling Height	Height measured from the top of finished surface of floor level up to the bottom of roof or ceiling or suspended or false ceiling level or Beam drops. In case of multistoried building, Vertical distance in between two slabs from which deduction shall be made for any suspended or false ceiling or Beam drops. For slope or pitch ceiling or roof, the minimum value shall be the ceiling height.
Common Space Condition	See NON-SEPARATED SPACE CONDITION
Control Area	A space or a room within a building enclosed by barriers with the fire rated walls, floor and ceiling, where the quantity of hazardous material shall not be exceeded the maximum allowable quantity per control area for storing, displaying, handling, dispensing or using as per provisions of this Code.
Detached Occupancy	A building separated by distance in a same plot to accommodate different type of occupancies shall be termed as Detached Occupancy.

Development Authority	A government or semi-government agency or a local body which has been legally designated to carry out and/or control any works of land development of an area having jurisdiction.
Far (Floor Area Ratio)	FAR is a ratio between the area of a plot and the sum of floor areas of building or buildings are erected or intended to be erected thereof. In the buildings, there may have some specific and calculated floor areas which shall be treated as bonus or exempted from the total floor area calculation and such areas shall be specified by the authorities having jurisdiction.
Fire	An uncontrolled fire which poses threat to safety of life or property or both.
Fire Separation Distance	A minimum distance which to be maintained between potential sources and/or between structures for fire safety. In case of differences between building setback and the required minimum fire separation distance measurement; the higher value shall be implied.
Flood	A Land or a plot normally dry but submerges or drowns as whole or partially by over flown water from any source.
Flood Level	A measurement of height from an existing ground level or from top level of river water of an area or a locality recorded in a Flood Hazard Map by the authorities having jurisdiction.
Flood Prone Area	At least once in a year a dry ground of an area or a plot or a portion thereof flooded at a height of 1m or more shall be designated as a Flood Prone Area.
Floor Height	In a multistoried building, floor height shall be measured from the top of finished surface of the two successive floor slabs and the measurement of the top most floor shall be from the top of finished surface of the floor slab and the top of the finished roof, in case of the slope roof, measurement shall be taken up to pick of that slope.
Frontage	Irrespective of the entry provision to a plot, full or partial length of any sides of a plot which are abutted to roads or streets shall be designated as frontage.
Formation Level	Finished ground level of a plot. For hilly areas formation levels shall be the gradient of the plot surface.
Gallery	A special type of seating arrangement where each and every row or tier of seats are successively elevated to provide a clear view to audiences or spectators within and around a playground or outdoor or indoor stadium or within an auditorium or in a hall.

Guard	A vertical protective barrier erected up to a height along exposed edges of stairways, balconies and similar areas.
Head Room Clearance	A vertical distance measured from the top of finished floor level up to the bottom of ceiling or lowest roof level or bottom of beam drop or bottom of any hanging element within a space. In case of a stairway, a vertical distance measured from the bottom surface of flight or ceiling or beam drop to any outer edge point of a tread below and for the landings ceiling height measurement system shall be adopted to determine head room clearance.
Helistop	A designated area on ground or on water or on a portion of a building for helicopter landing or takeoff without servicing, repairing and refueling facilities.
High Rise Building	Any building which is more than 10-storey or 33 m high from reference datum. Building appurtenances like overhead water tank, machine room, communication tower etc. will not be considered in determining the height.
Lighting Shaft	A space within a building which is fully enclosed by all sides and shall be open to the sky to provide daylight to adjacent interiors and less than the dimensions that stipulated for minimum closed or internal courts of corresponding to the building heights.
Loft	An intermediate space in-between a floor or a ceiling and under a pitch or a slope roof of a building.
Mandatory Open Space	The spaces within a plot which shall remain unpaved with or without vegetation to allow water penetration and uncovered up to the sky from formation level of the building. No underground or above ground construction is allowed in such spaces.
Mezzanine Floor	Within one space where more than one floor exists, the floor at the lowest level shall be designated as main floor and each Intermediate floor is limited to an area which is not more than one third of the main floor under one roof or one ceiling, thus gives two or more useable floor levels. These types of intermediate floors shall be designated as mezzanine floors. Mezzanine floor may be as gallery or flat floor type and which also includes interior balcony.
Mixed Occupancy	When two or more occupancies are amalgamated in a building shall be termed as Mixed Occupancy.
Non Separated Space Condition	Walls or partitions between compartments, rooms, spaces or areas within a building or part of a building which are not separated by an approved fire rated barrier walls or partitions shall be designated as non-separated space condition or effective undivided single space.

Openings	Apertures or holes in any wall of a building that allow air to flow through and which are designed as open.
Opening, Vertical	An opening through a floor or roof of a building.
Open Space	Open space within a plot includes all spaces other than spaces covered by the Maximum Ground Coverage (MGC).
Plinth	Bases of the building and the elements that negotiate with the ground.
Plinth Level	Height of a covered finished floor which is just above the formation level and measured from the formation level up to the top of that finished floor.
Plinth Area	The elements from the building bases which are exposed above the formation level to form a covered floor area by joining the peripheral points of the elements which are intersected finished floor plane at the height of plinth level shall be designated as Plinth Area.
Plot	A scheduled piece or parcel of land which is classified and restricted to its intended use.
Ramp	A sloping walkway which is steeper than 1 in 20 but not steeper than 1 in 8 and shall have guard and handrail.
Ramp, Accessibility	A sloping walkway not steeper than 1 in 12.
Ramped Driveway	Ramped Driveways are inclined floors that provide access to vehicles between two levels. Ramped walkway when provided side by side of a ramped driveway shall be separated by safety guard rails and curbs. A sloping driveway or Ramped Driveway steeper than 1 in 8 shall not be credited as a component of means of exit.
Ramp Gradient	Ramp gradient refers to the ratio of the inclination of a ramp (height by length ratio) measured along the center line of the ramp.
Road Level	The road level means top surface at the center point of the road width which is used for site entry and shall be considered as the reference point for measuring height or depth of any development.
Roof	Weather exposed and uncovered surface of the topmost or the terminal ceiling of a building which may be horizontal or pitched or may have slopes shall be treated as the roof of a building.

Separated Occupancy	A building or a portion thereof separated by barriers with wall or ceiling slab that into two or more parts to accommodate different type of occupancies in different parts.
Separate Space Condition	Rooms, spaces or areas within a building when separated by approved barrier wall.
Separation Wall	This is a peripheral wall of a building or a building which shall be divided into two or more or a common wall between two buildings to control spreading of fire as per provisions of this Code.
Site	See PLOT
Smoke Draft Barrier	A vertical panel dropped from the ceiling of a building or portion thereof to protect and control the movement of smoke draft during fire. The construction of such smoke draft barriers shall be complied with the provisions of this Code.
Stage	An elevated platform which is designed or used for presentation of plays or lectures or other entertainments in front an assembly of spectators or audiences.
Stage, Interior	An elevated platform within a building which is designed or used for presentation of plays or lectures or other entertainment in front an assembly of spectators or audiences.
Stage, Legitimate	Ceiling Height of a stage from the top surface of the platform is 15.24 m or more shall be designated as a legitimate stage.
Storage Density	A storage or display of solid or liquid merchandises shall not be exceeded 976 kg/m ² or 814 L/m ² respectively and shall be limited to the exempted quantity of an actually occupied net floor area. Maximum height of display or storing of merchandises shall not be exceeded 1829 mm or 2438 mm respectively. Allowable Height and Quantity may be less depending on the total area and the ceiling height of a store or a display.
Street Or Road	An open to outer air and unobstructed space having required width and used by the public as pedestrian or walkway, or animal or vehicular movement or any combination of these for the purpose of access to a plot or plots and is connected with the national public transportation system other than railway track shall be designated as street or road which may or may not be paved.
Street Or Road Width	The width of any street or road shall be measured form any plot to its opposite or face to face plot distance. For the determination of a road width, measurements shall be taken up to the connection of the national public transportation system other than railway track from any plot and the least width shall be the road width.

Street Floor Level	A story or floor level of a building which is accessible at the main entrance of a building from the street or from the outside at ground level and the floor shall not be more than three risers above or below the grade level.
Structural Frame	All members or elements such as columns, girders, beams, trusses and spandrels which forms a frame and have direct connections with bearing and transferring as an integral and essential elements for the stability of a building or a structure as a whole.
Surge Prone Area	Expected occurrence of a surge or wave of water may flow above 1 m or higher from the formation level.
Tall Structure	A building used for human occupancy located more than 80m high from the center of the adjacent road level or from lowest level of the fire department vehicle access.
Terrace	A paved surface not steeper than 1 in 20 and adjacent to a building which is connected by a stairway or a walking ramp or at the same level of any floor below the roof level of a building and at least one side of that area is exposed to the weather and having the guards and open to the sky.
Universal Accessibility	See ACCESSIBILITY
Unprotected	The element that shall have no prerequisites of fire protection rating.
Ventilation Shaft, Natural	A space sidewise enclosed but open to sky used to provide ventilation as inlet and/or outlet to adjacent interiors of dimensions less than that stipulated for internal courts of corresponding to building heights.
Verandah	Portions of a building at any level which have ceiling or roof and at least one side open up to 2.13 m height to the outside air and have guards as per provisions of this Code.
Walkup Building	A multi storied building which does not have any mechanical means of vertical circulation other than stairway shall be designated as a walkup building and the maximum height of the walkup building shall be as per provision of this Code or as approved by the authority having jurisdiction.